

[illegible]

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT			42a. RECEIVED BY (<i>Print</i>)	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		41c. DATE	42b. RECEIVED AT (<i>Location</i>)	
			42c. DATE REC'D (YY/MM/DD)	42d. TOTAL CONTAINERS

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52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (NOV 2023)

52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (OCT 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: *[Contracting Officer check as appropriate.]*

☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☒ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

[] (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

[X] (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

[] (6) [Reserved]

[] (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

[X] (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

[X] (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

[X] (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

[] (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

[] (ii) Alternate I (DEC 2023) of 52.204-30.

[X] (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

[X] (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

[] (14) [Reserved]

[] (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

[] (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

[] (17) [Reserved]

[] (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

[] (ii) Alternate I (MAR 2020) of 52.219-6.

[] (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

[] (ii) Alternate I (MAR 2020) of 52.219-7.

[X] (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).

[X] (21)(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

[] (ii) Alternate I (NOV 2016) of 52.219-9.

[] (iii) Alternate II (NOV 2016) of 52.219-9.

[] (iv) Alternate III (JUN 2020) of 52.219-9.

[] (v) Alternate IV (JAN 2025) of 52.219-9.

[] (22)(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

[] (ii) Alternate I (MAR 2020) of 52.219-13.

[X] (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

[] (24) 52.219-16, Liquidated Damages- Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

[] (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

[] (26)(i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

[] (ii) Alternate I (MAR 2020) of 52.219-28.

[] (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

[] (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

[] (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

[] (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

[X] (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

[X] (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2025) (E.O. 13126).

[X] (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

[X] (34)(i) 52.222-26, Equal Opportunity (SEPT 2016) (E.O. 11246).

☐ (ii) Alternate I (FEB 1999) of 52.222-26.

☒ (35)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (JULY 2014) of 52.222-35.

☒ (36)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (JULY 2014) of 52.222-36.

☒ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

☒ (39)(i) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☐ (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (MAY 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

☐ (47)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

☐ (ii) Alternate I (JAN 2017) of 52.224-3.

☐ (48)(i) 52.225-1, Buy American- Supplies (OCT 2022)) (41 U.S.C. chapter 83).

☐ (ii) Alternate I (OCT 2022) of 52.225-1.

☐ (49)(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

☐ (ii) Alternate I [Reserved].

☐ (iii) Alternate II (JAN 2025) of 52.225-3.

☐ (iv) Alternate III (FEB 2024) of 52.225-3.

☐ (v) Alternate IV (OCT 2022) of 52.225-3.

☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).

☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).

☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

☐ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT 2018) (31 U.S.C. 3332).

☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

☒ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

[] (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

[] (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

[] (65)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

[] (ii) Alternate I (Apr 2003) of 52.247-64.

[] (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: *[Contracting Officer check as appropriate.]*

[] (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

[] (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[] (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[] (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[] (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (MAY 2014) (41 U.S.C. chapter 67).

[] (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

[] (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

[] (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

[] (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

[] (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records - Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi) [X] (A) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

[] (B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62 Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)(A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

B - Supplies or Services/Prices

PRICE/COST SCHEDULE

Labor Category	Base Period Labor Rate	Option Period 1 Labor Rate	Option Period 2 Labor Rate	Option Period 3 Labor Rate	Option Period 4 Labor Rate
Senior Environmental and Social Specialist					
Environmental and Social Specialist					
Subject Matter Expert					

C - Description/Specifications

PERFORMANCE WORK STATEMENT

Statement of Work (SOW)

Environmental & Social Support Services

Office of Development Policy (ODP)

U.S. International Development Finance Corporation (DFC)

1. BACKGROUND

The U.S. International Development Finance Corporation (DFC) is the U.S. Government's Development Finance Institution. DFC partners with the private sector to mobilize capital for strategic investments worldwide that foster economic development, support U.S. interests, and deliver returns to American taxpayers. Launched in 2019, DFC helps to advance U.S. foreign policy by supporting projects that promote economic stability, protect sovereignty, and ensure transparency. DFC investments adhere to high U.S. business standards and respect the environment, human rights, and internationally recognized worker rights. Projects financed by DFC support are subject to a comprehensive environmental and social (E&S) review process, including screening, due diligence, specialized reviews, clearances, and monitoring.

The DFC Office of Development Policy (ODP) seeks to establish an Indefinite Delivery, Indefinite Quantity (IDIQ) contract with a qualified E&S consulting firm (the Contractor) to provide on-demand environmental and social advisory services to support the E&S Risk Management Team across all types of transactions including debt, equity, political risk insurance and financial intermediaries. While this IDIQ is primarily being established in support of ODP's mission, other departments within DFC may require use of this IDIQ to fill contractual needs within the scope of this IDIQ. The IDIQ establishes access to future Task Orders, each of which will define assignment-specific scope, deliverables, hours, and any special requirements, further defined below.

Assignments will be time-sensitive and may require a broad range of specific technical expertise aligned with issues elaborated by the International Finance Corporation (IFC) Performance Standards.^{[1]¹} Support may address multiple E&S topics, occur at various stages of projects' lifecycles, and be provided on a project-by-project basis. The Contractor will work under DFC direction and in response to Task Orders to support assessment of alignment with the 2024 DFC Environmental and Social Policy and Procedures (ESPP),^{[2]²} the International Finance Corporation (IFC) Performance Standards (2012), relevant international good practices, and applicable U.S. Government requirements. The Contractor must have access to a range of E&S subject-matter experts able to support thematic E&S issues across different sectors, as described in Section 2. Task Orders may require rapid mobilization and concurrent support across multiple assignments, with timing and response expectations specified at the Task Order level.

In addition to desk-based work, support may include participation in site visits that require domestic or international travel (refer to Section 10 for travel provisions).

2. CONTRACT TYPE

This is an Indefinite Delivery, Indefinite Quantity (IDIQ) contract under which Task Orders may be issued on a Labor Hour and/or Firm Fixed Price (FFP) basis. The IDIQ proposal should demonstrate firm-wide capability to support the full SOW, while specific staffing and level of effort will be proposed at the Task Order level. The specific contract type applicable to each Task Order will be identified in the individual Task Order.

3. SCOPE OF WORK

ODP requires a Contractor to provide technical assistance in accordance with the Applicable Standards.

(as defined below).

Anticipated tasks and deliverables include:

Task	Description	Deliverables
Comprehensive E&S support (across E&S issues)		
1. Environmental & Social Screening	· Review project documentation and develop E&S red-flags reports and/or screening memos to support DFC's screening-stage ESPP requirements, sector-specific standards, and other supplemental standards. · Identify, on a preliminary basis, applicable IFC Performance Standards, ESPP requirements, sector-specific and other supplemental standards.	· Red-flag reports and/or screening memos, depending on the assignment
2. Due Diligence Assessment	· Review project documentation and assess compliance with the Applicable Standards. · Examples of project documentation may include E&S management systems (ESMS), E&S impact assessments (ESIAs) and other baseline studies, E&S management plans (ESMPs), human resources policies, labor and contractor management plans, stakeholder engagement plans, Resettlement Action Plans (RAPs) and Livelihoods Restoration Plans (LRPs), Critical Habitat Assessments (CHAs), etc. · Identify gaps and recommend actions for alignment with the Applicable Standards. · As required, conduct visits to project sites.	· Comprehensive reviews, gap analyses or due diligence reports, draft E&S corrective action plans, depending on the assignment
3. Monitoring	· Review project documentation / data and assess compliance with the Applicable Standards and Requirements. · Identify policy, procedural, or implementation gaps and recommend actions for alignment with the Applicable Standards and Requirements. · As required, conduct visits to project sites to assess compliance. · Develop and provide client-facing training focused on application of content covered across the IFC Performance Standards, as requested.	· Comprehensive reviews, gap analyses or monitoring reports, structured monitoring plans, draft E&S corrective action plans, depending on the assignment
4. Client support	· Review E&S documents prepared by clients or third parties and provide technical feedback to support alignment	· Written feedback, emails, conference calls, or concise

	with the Applicable Standards. · Provide basic advisory support to DFC clients to meet the Applicable Standards.	technical memos, depending on the assignment
Thematic Subject matter-specific E&S support		
5. Thematic Subject Matter Expertise	· Within a specific area of expertise, conduct specialized thematic reviews on E&S topics as requested by DFC. Examples of these topics are (but not limited) to noise, air, hydrogeology, hydrology, soil contamination (Phase I/ II) modeling/impact assessment studies, Hazard Identification (HAZID) studies, Hazard and Operability (HazOp) studies, Quantitative Risk Assessments (QRAs), stakeholder engagement evaluations, Resettlement Action Plans (RAPs), supply chain labor audits, Indigenous People assessments, biodiversity baseline studies and CHAs, gender-based violence and harassment assessments, and related assessments. · Provide expert opinions and ongoing consultation, advice and support to DFC staff within area of expertise.	· Written summaries, concise technical memoranda, or detailed assessment reports depending on the assignment
6. Sector Subject Matter Expertise	· Within a specific area of expertise, serve as subject matter sector expert (e.g., oil and gas, mining/critical minerals, telecommunications, infrastructure, pharmaceuticals and healthcare, chemical manufacturing, agriculture, etc.). · Review project documentation and provide analysis and input based on sector subject matter expertise. · Provide expert opinions and ongoing consultation, advice and support to DFC staff in area of expertise.	· Written summaries, concise technical memoranda, or detailed assessment reports depending on the assignment
7. Training and SOP development	· Develop guidance materials, templates, or Standard Operating Procedures (SOPs) relevant to areas of expertise. · Deliver internal training sessions for DFC staff on E&S topics and procedures.	· Guidance materials, SOPs, training sessions depending on the assignment

4. APPLICABLE STANDARDS *hyperlinked)[3]³

- [*U.S. International Development Finance Corporation Environmental and Social Policy and Procedures \(ESPP\)](#);
- [*International Finance Corporation \(IFC\) Performance Standards and Guidance Notes](#);
- [*World Bank Environmental, Health, and Safety \(EHS\) Guidelines](#);
- World Bank [Sector-Specific standards](#);
- [*Good International Industry Practices \(GIIP\)](#);
- Host country laws and regulations applicable to each project;

- International laws including conventions and treaties adopted by the host country and applicable to the project;
- [*ILO Fundamental Conventions](#);
- Requirements of the DFC Finance Agreement (if applicable).

The Contractor will be required to sign a confidentiality agreement. The Contractor will not be able to simultaneously work on a Task Order under this IDIQ for DFC while working for the client on the same project to avoid conflicts of interest.

5. TASK ORDERING & LABOR HOURS

The Government may, at any time during the period of performance, require the addition of new labor categories that are within the general scope, nature, and complexity of this contract. Such additions shall be accomplished through a bilateral modification to the contract.

Tasks will be assigned via Task Orders specifying scope, deliverables, estimated hours, schedule, and budget.

Task	Estimated Hours (Per Task Order)	Labor Category
Screening & Categorization	24–40	E&S Specialist
Due Diligence Assessments	60–100	Senior E&S Specialist
Specialized and Thematic Review	40–80	Senior Thematic Expert
Monitoring Activities	40–80	Senior E&S Specialist
Training / SOP Development	40–60	Senior E&S Specialist

Labor Category	Base Period Labor Rate	Option Period 1 Labor Rate	Option Period 2 Labor Rate	Option Period 3 Labor Rate	Option Period 4 Labor Rate
Senior Environmental and Social Specialist					
Environmental and Social Specialist					
Subject Matter Expert					

6. CONTRACTOR EXPERIENCE & QUALIFICATIONS

The Contractor shall demonstrate experience in providing E&S risk management support to Development Finance Institutions (DFIs), Multilateral Development Banks (MDBs), or similar institutions, consistent with DFC's ESPP (2024), the IFC Performance Standards (2012), relevant international good practices, and applicable U.S. Government requirements.

The Contractor must be able to provide DFC with qualified professionals as specified in the relevant Task Order for each assignment. Proposed personnel should meet the following labor categories and experience:

Labor Category	Required Experience	Education (Preferred but Not Required)
Senior Environmental and Social Specialist	Minimum 10+ years' experience in DFI/MDB	Advanced degree (master's or higher) in relevant field

	projects; expertise in IFC PS, ESPP, and complex due diligence (e.g., labor contracts, stakeholder engagement, resettlement, critical habitats, cumulative impacts, Indigenous Peoples).	(environmental sciences, engineering, social sciences, anthropology, or related discipline), or equivalent combination of education and professional experience
Environmental and Social Specialist	5+ years' experience in environmental impact assessment, management plan review, and sector-specific environmental risks, DFI/MDB projects.	Bachelor's degree in a relevant discipline required; master's degree preferred.
Subject Matter Expert (as needed)	12+ years' experience, including DFI/MDB projects. Subject matter expertise may include but not be limited to (e.g., biodiversity, chemical engineers, water quality and monitoring specialists, air quality and monitoring specialists, sociologists, resettlement, cultural heritage, climate resilience) mobilized on demand.	Advanced degree preferred, with demonstrated published work or professional recognition in the field.

All proposed personnel must demonstrate strong technical writing skills, the ability to synthesize complex information, and fluency in English. Other language skills may be preferred or required, depending on the Task Order. Each Task Order shall define specific service requirements, and the Contractor shall provide personnel with the qualifications and expertise necessary to perform the requested services. Performance under certain Task Orders may require travel to domestic and/or international locations. In such cases, the Contractor shall ensure that assigned personnel possess the requisite proficiency in the applicable local language(s). Offerors should describe their approach to rapid mobilization, concurrent task management, and access to specialized experts under short timelines.

NOTE: In its proposal, the bidders shall identify a primary point of contact (POC) for communications with DFC and demonstrate the capacity to source technical experts on an as-needed basis as defined in the individual Task Orders.

7. PLACE OF PERFORMANCE

The place of performance may be remote from contractor-provided facilities or virtual locations. Travel or in-person support may be required on a task-specific basis and will be identified in the applicable Task Order.

8. PERIOD OF PERFORMANCE

The period of performance shall be for an ordering period of five (5) years.

9. PRICING STRUCTURE

Firm Fixed Price and Labor Hour; contract per FAR Parts 16.202 and 16.602. Task Orders will specify estimated hours and budgets; the CO must approve any adjustments that would exceed the contract ceiling.

10. DELIVERABLES

Deliverables and expected level of effort will be defined in Task Orders, including screening memos; due diligence reports; specialist studies; clearance documents; Financial Intermediaries

reviews; structured monitoring plans, risk event response documentation, and site monitoring reports; and training materials.

The deliverables will be evaluated according to the following criteria:

- a. Thoroughness and timeliness in complying with all the elements in the tasks specified.
- b. Timeliness and quality of finished products, including clarity of synthesis and technicality in materials produced.
- c. Timeliness and efficacy of communications with relevant counterparts at DFC and other relevant organizations.
- d. Compliance with the Applicable Standards.

All reports are to be submitted in English. Electronic submissions are preferred; hard copies may be required where specified in a Task Order. Reports must follow DFC branding and style guidance, be accessible (Section 508 compliant), and provide tables, data, and visualizations in readily usable formats.

The contractor shall provide the following deliverables:

Number	Deliverable	Due Date
1	Kick-off-meeting	Within five business days of the award date
2	Monthly Status Report	Within five business days of the first of the month
3	Additional deliverables	As specified in individual Task Order

11. HOURS OF OPERATION

The Contractor may perform work in accordance with its normal business hours. DFC's standard operation hours (Monday-Friday, 9:00 AM – 6:00 PM ET) will serve as reference for scheduling meetings and communication. The Contractor shall be reasonably available during these hours for coordination and task-specific discussions unless otherwise specified in a Task Order.

12. TRAVEL

Travel is anticipated for this contract. Each task order will specify whether travel is required or not. The required authorization for travel will be provided by the Contracting Officer (CO) or the appointed Contracting Officer's Representative (COR). Travel locations may include any location that DFC is authorized to work. To learn more about DFC's active projects please visit DFC.gov.

12.1 Preauthorization for Travel

Travel shall not be undertaken without prior written authorization. If travel is authorized, DFC will only reimburse the Contractor for actual travel costs incurred during the authorized travel period. Profit/Fee shall not be applied to travel costs or per diem and is not allowable under this contract. Handling rates shall not be applied to travel costs. When travel is authorized, the Contractor shall provide estimated travel costs to the authorizer in advance of scheduling travel. Requests for travel must include the following information:

- a. Name of traveler;
- b. Dates of travel;
- c. Destination(s);
- d. Purpose of travel;
- e. Estimated transportation costs;
- f. Estimated lodging expense;
- g. Estimated meals and incidental expenses; and
- h. Other expenses.

12.2 Travel Cost Reimbursement Limitations

All travel shall be performed in accordance with Government travel regulations. The Government will reimburse travel expenses at actual cost, in accordance with limitations equivalent to those set forth in the Federal Travel Regulations (FTR). Unless authorized by the Contracting Officer, reimbursement of lodging, meals and incidental expenses will not exceed the applicable rates set forth in the FTR for the travel destinations.

12.3 Travel Security Conditions and Reporting

The Contractor must remain vigilantly aware of security conditions while traveling for DFC, and by entering into a contract, assumes full responsibility for the safety of its employees. Prior to commencing work, the Contractor must ensure that it has adequate procedures in place to advise its employees of situations or changed conditions that could adversely affect their security. The Contractor acknowledges that security conditions are subject to change at any moment, that DFC cannot guarantee the accuracy of any information that it may provide to the Contractor and that DFC assumes no responsibility for the reliability of such information. The Contractor has sole responsibility for approving all travel plans for its employees. The Contractor is also responsible for immediately notifying DFC and the U.S. Embassy American Citizen Services section in the event a U.S. citizen employee does not return from travel as expected or does not report to work.

13. NON-PERSONAL SERVICE STATEMENT

Contractor employees performing services under this order will be controlled, directed, and supervised at all times by management personnel of the contractor. Contractor management shall ensure that employees properly comply with the performance work standards outlined in the Statement of Work. Contractor employees shall perform their duties independent of, and without the supervision of any Government official. The tasks, duties, and responsibilities set forth in the Task Order may not be interpreted or implemented in any manner that results in any contractor employee creating or modifying Federal policy, obligating the appropriated funds of the United States Government, overseeing the work of Federal employees, providing direct personal services to any Federal employee, or otherwise violating the prohibitions set forth in Parts 7.5 and 37.1 of the Federal Acquisition Regulation (FAR). The Government will control access to the facility and will perform the inspection and acceptance of the completed work.

14. QUALITY CONTROL PLAN

The contractor shall develop and maintain an effective Quality Control program to ensure services are performed in accordance with this SOW. The quality control plan shall address the contractors management plan addressing talent management for recruiting and retaining top performers, including a sourcing plan. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services.

15. SECURITY

15.1. Contractor shall meet and adhere to all DFC security requirements as they apply per DFC's Office of Information Technology (OIT), Security and Privacy Requirements for Information Technology Procurements Policy SA-04:

[DFC OIT Security and Privacy Requirements for Information Technology Procurements Dec 11 2024](#)

Security Clearance: To be determined at the Task Order level (if applicable).

15.2 Government Furnished Property

The Government will not provide any Government furnished property.

15.3 Restrictions Against Disclosure

The Contractor, inclusive of all Contractor staff performing work under this contract, agrees to sign and adhere to DFC provided non-disclosure and confidentiality agreements with DFC in connection with work performed under this contract; and to complete and adhere to DFC ethics training and policies, respectively. The Contractor, inclusive of all Contractor staff performing work under this contract, agrees in the performance of this contract, to keep in strict confidence the information furnished by the Government and designated by the Contracting Officer or Contracting Officer's Representative as non-public DFC materials and information; and not to publish or otherwise divulge such information in whole or in part, in any manner or form, nor to authorize or permit others to do so, taking such reasonable measures as are necessary to restrict access to such information while in the Contractor's possession, to those employees needing such information to perform the work provided herein, i.e., on a need to know basis. The Contractor agrees to immediately notify the Contracting Officer in writing in the event that the Contractor determines or has reason to suspect a breach of this requirement, including by any of its staff. The Contractor agrees that it will not disclose any information described in paragraph 1 of this section to any persons or individual unless prior written approval is obtained from the Contracting Officer's Representative. The Contractor agrees to insert the substance of this clause in any consultant agreement or subcontract hereunder.

15.4 Intellectual Property

All Contractor developed processes and procedures and other forms of intellectual property first developed under this contract shall be considered Government property. All documentation, photography and electronic data and information collected by the Contractor and entered into or generated in support of this contract shall be considered Government property, and shall be returned to the Government at the end of the performance period.

15.5 Information Security

The Contractor and all contract employees shall sign and comply with a DFC-provided non-disclosure and confidentiality agreement.

15.6 Protection of Information

The Contractor shall be responsible for properly protecting all information used, gathered, or developed as a result of work under this contract. The Contractor shall also protect all Government data, equipment, etc. by treating the information as sensitive. It is anticipated that this information will be gathered, created, and stored within the primary work location. If contractor personnel must remove any information from the primary work area they should protect it to the same extent they would their proprietary data and/or company trade secrets. The use of any information that is subject to the Privacy Act will be utilized in full accordance with all rules of conduct as applicable to Privacy Act Information. The government will retain unrestricted rights to government data. The ordering activity retains ownership of any user created/loaded data and applications hosted on vendor's infrastructure, as well as maintains the right to request full copies of these at any time. The data that is processed and stored by the various applications within the network infrastructure contains financial data as well as personally identifiable information (PII). This data and PII shall be protected against unauthorized access, disclosure or modification, theft, or destruction. The contractor shall ensure that the facilities that house the network infrastructure are physically secure. The data shall be available to the Government upon request within one (1) business day or within the

timeframe specified and shall not be used for any other purpose other than that specified herein. The contractor shall provide requested data at no additional cost to the government. No data shall be released by the Contractor without the consent of the Government in writing. All requests for release must be submitted in writing to the COR/CO.

15.7 Return or Destruction of all Work Product and Business Documents

Upon conclusion of the contract or termination of employment with the Contractor, the Contractor will return to DFC or destroy all work product and business-related documentation, including electronic or hard copies thereof.

16. SECTION 508 ELECTRONIC AND INFORMATION TECHNOLOGY STANDARDS

16.1 Section 508 of the Rehabilitation Act, as amended by the Workforce Investment Act of 1998 (P.L. 105-220), requires that when Federal agencies develop, procure, maintain, or use electronic and information technology (EIT), they must ensure that it is accessible to people with disabilities. Federal employees and members of the public who have disabilities must have equal access to and use of information and data comparable to that enjoyed by non-disabled Federal employees and members of the public.

17. DATA RIGHTS

In the performance of this contract, the contractor agrees to keep all information contained in source documents or other media furnished by the Government in the strictest confidence. The contractor also agrees not to publish or otherwise divulge such information in whole or in part, any manner or form, nor to authorize or permit others to do so, taking such reasonable measures as are necessary to restrict access to such information while in the contractor's possession, to those employees needing such information to perform the work provided herein, i.e., on a "need to know" basis. The contractor agrees to immediately notify the CO, in writing, if the contractor determines or has reason to suspect a breach of this requirement. The contractor agrees not to disclose any information concerning work under this contract to any persons or individuals unless prior written approval is obtained from the CO. The contractor agrees to insert the substance of this clause in any consultant agreement or subcontract hereunder.

18. GOVERNMENT OVERSIGHT

The CO retains contractual authority. The COR provides technical oversight, approves deliverables, and certifies invoices. Contractor travel may be required in support of certain assignments, including but not limited to project site visits for due diligence, stakeholder consultations, or training DFC's staff. All travel shall:

- a. Be approved in writing in advance by the COR;
- b. Comply with the Federal Travel Regulation (FTR) regarding cost ceilings, per diem, and transportation;
- c. Be billed at-cost without markup; and
- d. Result in a short trip report summarizing activities undertaken, key findings, and next steps.

Travel estimates and budgets shall be included in applicable Task Orders.

19. ASSUMPTIONS AND DEPENDENCIES

The staffing process is dependent on the availability of suitable candidates in the target countries. The staffing agency will assume responsibility for compliance with all relevant regulations, including employment laws and visa requirements.

Visa and work permit requirements: The success of the project may depend on the ability of

selected candidates to obtain the necessary visas, and work permits to work in the designated countries. Assumptions can be made about the ease of obtaining these documents, but it is important to remain aware of any changes in regulations or restrictions that may affect the ability to hire international talent.

Language proficiency: The success of the staffing project may also depend on the language proficiency of the selected candidates. Assumptions can be made about the language skills required for specific roles, but it is important to ensure that language skills are accurately assessed during the recruitment and selection process.

Technology and communication: The success of the project may depend on the availability and functionality of technology and communication tools used for candidate screening, interviewing, and onboarding. Assumptions can be made about the reliability and accessibility of these tools, but it is important to have contingency plans in case of any issues or limitations. The contractor is reliable for ensuring high-speed internet access is available for all task orders. If high speed access internet is not available, the contractor must notify the CO and have a contingency plan in place.

Compliance with local laws and regulations: The success of the project may depend on compliance with local laws and regulations in each country where staffing is required. Assumptions can be made about the relevant laws and regulations, but it is important to verify and comply with all requirements to avoid any legal or financial consequences.

Collaboration with internal and external stakeholders: The success of the project may depend on the collaboration and communication with various internal and external stakeholders, such as hiring managers, recruitment agencies, and legal advisors. Assumptions can be made about the level of collaboration required, but it is important to maintain open lines of communication and engage stakeholders throughout the staffing process.

Availability of resources: The success of the project may depend on the availability of resources, such as personnel, funding, and technology. Assumptions can be made about the availability of these resources, but it is important to monitor and adjust as needed to ensure that the project stays on track.

Currency: All currency will be in US dollars. The contractor shall be responsible for all conversions to US Dollar.

These assumptions and dependencies should be considered throughout the life of the IDIQ to ensure that potential risks and challenges are identified and addressed in a timely manner.

Proposal Requirements:

In order to enable the DFC to make an informed selection, proposals should include, as a minimum, the following:

1. Confirmation that your firm accepts the Scope of Work and/or any comments you may have concerning the Scope of Work;
2. Your firm should demonstrate both core DFI due diligence capacity and access to thematic experts relevant to DFC's portfolio, with examples of recent assignments and personnel qualifications.
3. The proposed core team along with a brief curriculum vitae for each team member (e.g. education, work history, relevant experience, publications and memberships) including description of experience on similar projects (CVs may be included as an Appendix to the

proposal;

4. An explanation of the methodology and process your team intends to follow with regards to completing the Scope of Work. Offerors should describe their methodology for screening, due diligence, monitoring, and preparation of actionable recommendations in compliance with the DFC ESPP and IFC Performance Standards. In addition, how your team will respond to task order management and surge capacities. Offerors should describe their approach to rapid mobilization, concurrent task management, and access to specialized experts under short timelines.
5. Offerors should provide a concise description of internal QA/peer review procedures for technical deliverables and task management.
5. Confirmation of your team's ability to meet the timelines;
6. Confirmation that your firm and its affiliates have no conflicts of interest in undertaking this assignment;
9. Confirmation of your commitment to promptly notify the Client and DFC in the event that a conflict arises;
10. Validity of your proposal.

Evaluation Criteria

Technical Approach and Understanding – 30 points

Relevant Corporate Experience – 25 points

Key Personnel and Subject Matter Expertise – 25 points

Past Performance – 10 points

Quality Assurance and Management – 10 points

[1] Or, if the IFC Performance Standards are updated, the standards that replace them may be used under this contract in addition to the IFC Performance Standards for existing projects. This footnote is applicable to all IFC Performance Standard references throughout this scope of work.

[2] Or prior DFC E&S policy for older projects or if DFC's E&S policy is updated then new projects will require contractor support as it pertains to the new policy. This footnote is applicable to all ESPP references throughout this scope of work.

[3] The contractor is expected to be able to apply the Applicable Standards' current, past, and/or future versions (if developed), depending on the specific Task Order.

D - Packaging and Marking

PACKAGING AND MARKING PACKAGING AND MARKING PACKAGING AND MARKING PACKAGING AND MARKING

D.1 PACKAGING

Unless otherwise specified, packaging of all deliverables must conform to commercial packing standards to assure safe delivery at destination. Deliverables submitted by email shall include the task order number and project number in the subject line. Clauses and other requirements regarding packaging shall be designated by the OCO at the task order level.

D.2 MARKING

All deliverables required under this contract shall be marked in accordance with Government specifications. At a minimum, all deliverables shall be marked with the contract number, task order number, project number, contractor name, and name of DFC POC. Specific marking requirements may be addressed in individual task orders.

D.3 PAYMENT OF POSTAGE AND FEES

All postage and fees related to the submission of information, including forms, reports, etc., to the CO, the COR, or the person(s) designated to receive, shall be the responsibility of the Contractor.

(End of Section D)

E - Inspection and Acceptance

52.246-4 INSPECTION OF SERVICES - FIXED-PRICE. (AUG 1996)

52.246-6 INSPECTION - TIME-AND-MATERIAL AND LABOR-HOUR. (MAY 2001)

Inspection and Acceptance INSPECTION AND ACCEPTANCE

E.1 ACCEPTANCE OF DELIVERABLES

(a) IDIQ level deliverables will be accepted by the Contracting Officer identified in Block 31 on page 1 of the award and by the Contracting Officer's Representative.

(b) Task Order deliverables will be accepted by the task order COR (or otherwise authorized personnel). The Contractor shall coordinate with the COR regarding the manner in which the services are to be performed, including consultation regarding strategy and legal theory regarding the services. The COR will review any written work product prior to such document being finalized, delivered or filed by the Contractor.

E.2 ACCEPTANCE CRITERIA

The Contractor shall provide deliverables that are responsive to the performance work statement and that meet the general acceptance criteria outlined. The deliverables shall be provided to the COR for dissemination to DFC subject matter expert(s) for review and comments. Final inspection and acceptance of all work performed, work products and other deliverables, will be performed by the COR.

All Contractor-produced documents and documentation (work products) shall meet the following general acceptance criteria. Final inspection and acceptance of all work performed, reports and other deliverables will be performed at the place of delivery by the COR. The criteria below shall serve as minimal acceptable criteria for all deliverables at both the IDIQ and order level. Additional criteria may be added at the order level.

a. Clarity: Work products and technical content shall be relevant and unambiguous and shall adhere to accepted elements of style. Presentations shall be easy to understand and be relevant to the supporting narrative.

b. Adherence to Requirements: Work products must satisfy the requirements of the work required under each individual IDIQ Task Order and must contribute to the overall success of the tasks.

c. Format: Work products and deliverables shall be submitted in the format specified in the Deliverables section of the IDIQ and/or IDIQ Task Order (if applicable), or as specified by the COR. If format is not specified in the Deliverables section of the contract, the Contractor shall submit all work products incompatible with Microsoft Office Suite products.

d. Completeness: Work products and deliverables shall be comprehensive and appropriately developed (i.e., have all parts or elements).

e. Timeliness: Work products and deliverables shall be available at the time required and generated on or before specified and mutually agreed to due dates or in accordance with a later mutually agreed to scheduled date.

f. Communication: Communication with client/customers shall be professional, clear, and concise. Communication, both verbal and non-verbal, always maintains the goal of working toward positive solutions.

g. File Documentation shall be organized and free of errors.

h. Significant Deficiencies - Work products shall be free of significant deficiencies. Significant deficiencies are findings by reviewing officials of serious omissions, inaccuracies, noncompliance with legal requirements and standards, and failures to adhere to review protocols and accepted procedures. Examples of significant deficiencies include, but are not limited to the following:

- i. Omission of required documents.
- ii. Documents that do not conform to approved standards for content and format.
- iii. Review packages that are not organized.
- iv. Documents with material errors or inadequacies.
- v. Review packages with record of required reviews and approvals.

(End of Section E)

G - Contract Administration Data

52.216-32 TASK-ORDER AND DELIVERY-ORDER OMBUDSMAN. (SEP 2019)

(a) In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract.

[Contracting Officer to insert name, address, telephone number, and email address for the Agency Ombudsman or provide the URL address where this information may be found.]

(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

52.232-1 PAYMENTS. (APR 1984)

52.232-7 PAYMENTS UNDER TIME-AND-MATERIALS AND LABOR-HOUR CONTRACTS. (NOV 2021)

ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS - INVOICE PROCESSING PLATFORM (IPP)

Payment requests must be submitted electronically through the U.S. Department of the Treasury's Invoice Processing Platform (IPP) system or any successor site using the "Bill to Agency" of U.S. International Development Finance Corporation – DFC.

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in FAR32.905(b), "Content of Invoices" and the applicable Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions.

Commercial Items included in commercial item contracts. The IPP Homepage can be accessed at: www.IPP.gov. New suppliers to IPP should contact DFC contracting officer. DFC will setup the supplier in IPP. The Contractor Government Business Point of Contact (as listed in SAM) will receive two registration emails from IPP with login instructions prior to the contract award date, but no more than 5 - 7 business days after contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Help desk Monday through Friday 8:00-6:00 EDT (except federal holidays) via email at: IPP.Customer.Support@fiscal.treasury.gov or by phone at (866) 973-3131.

If the Contract or is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation. ONLY the Contracting Officer may authorize alternate procedures in writing in accordance with Treasury procedures.

(End of Custom Clause)

CONTRACT ADMINISTRATION DATA CONTRACT ADMINISTRATION DATA CONTRACT ADMINISTRATION DATA CONTRACT ADMINISTRATION DATA

G.1 ACCOUNTING AND APPROPRIATION DATA

Accounting and appropriation data will be established at the order level.

G.2 PRIMARY GOVERNMENT ROLES AND RESPONSIBILITIES

The following subsections describe the roles and responsibilities of individuals and authorized users who will be the primary Points of Contact (POC) for the Government on matters regarding contract administration as well as other administrative information. The Government reserves the right to unilaterally change any of these individual assignments at any time.

G.2.1 Government Personnel

G.2.1.1 CONTRACTING OFFICER'S AUTHORITY

The Contracting Officer is the only person authorized to make or approve any changes in any of the high level work category requirements of this IDIQ, and, notwithstanding any provisions contained elsewhere in this contract, the said authority remains solely in the Contracting Officer. In the event the contractor makes any changes at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and the contract will be operating at risk. No adjustment will be made in the contract terms and conditions, including price. Only the CO has the authority to:

- (1) authorize any changes in the performance work statement;
- (2) modify or extend the period of performance;
- (3) change the delivery schedule,
- (4) authorize reimbursement to the Contractor for any costs incurred during the performance of this IDIQ; or
- (5) otherwise change any terms and conditions of this IDIQ.

Communications pertaining to IDIQ administration matters shall be addressed to the CO. No changes in or deviation from the scope of the work shall be affected without a supplemental agreement (IDIQ modification) executed by the CO authorizing such changes.

The Contracting Officer for the IDIQ contract is:

Melissa Hergenrader
Director, Service Contracts
U.S. International Development Finance Corporation (DFC) 1100 New York Ave, NW
Washington, DC 20527
Melissa.Hergenrader@dfc.gov

G.2.1.2. CONTRACTING OFFICER'S REPRESENTATIVE (COR) FOR THE IDIQ

TBD will be designated as the Contracting Officer's Representative (COR) for the IDIQ. DFC may change the COR at any time without prior notification to the Contractor by a unilateral modification to the IDIQ. The COR is:

TBD

Contracting Officer's Representative

U.S. International Development Finance Corporation (DFC) 1100 New York Ave, NW

Washington, DC 20527

TBD@dfc.gov

The COR serves as technical liaison between DFC and the Contractor with respect to the IDIQ. The COR is also responsible for the acceptance of all deliverables for the IDIQ specified in Section F6, and such other responsibilities as may be specified in the IDIQ.

The COR is not authorized to make any commitments or otherwise obligate DFC or authorize any changes, which affect the IDIQ pricing, terms or conditions. Any Contractor's request for changes shall be referred to the Contracting Officer directly or through the COR. No such changes shall be made without the expressed prior authorization of the CO.

G.2.1.3 TECHNICAL MONITOR

A DFC technical monitor for each IDIQ Task Order will be designated at the time the IDIQ Task Order is issued. The technical monitor generally will be the DFC staff assigned to work on the transaction on a day to day basis. Within the scope of the IDIQ Task Order, the technical monitor will provide technical direction to the Contractor on the timing and manner in which services are to be performed, and will provide technical review and final acceptance of written work product and deliverables. The technical monitor will also be part of the review and approval process for the Contractor's invoices.

G.2.1.4 LIMITATION OF AUTHORITY

Questions relating to the terms of the IDIQ shall be referred to the IDIQ Contracting Officer. Questions regarding IDIQ Task Orders shall be addressed to the CO identified on the order. No written or oral statement of the COR or the designated personnel shall serve as a basis for modification of the terms of the IDIQ or any IDIQ Task Order, unless confirmed in writing by the CO. If the COR, or any other DFC employee, requests the Contractor to provide services which are outside the scope of the IDIQ or IDIQ Task Orders, the Contractor should promptly advise the CO immediately, preferably in writing if time permits. Note that providing services outside of this IDIQ or IDIQ Task Orders could result in nonpayment for those services.

G.3 GOVERNMENT FURNISHED PROPERTY

The Government will not provide property for the performance of the contract.

G.4 NON-PERSONAL SERVICES

No personal services, as defined by subpart 37.104 of the FAR shall be performed under the IDIQ. No Contractor employee will be directly supervised by the Government. All individual employee assignments, and daily work direction, shall be given by the applicable employee supervisor. If the Contractor believes any Government action or communication has been given that would create a personal services relationship between the Government and any Contractor employee, the Contractor shall promptly notify the Contracting Officer. Some of the services under this requirement require Contractors to perform inherently Governmental Functions during their representation of the DFC in enforcement proceedings and litigation. DFC

is authorized to contract for these services by Section 1432; Corporate Powers of the BUILD Act.

G.5 AUTHORIZATION OF GOVERNMENT PAID TRAVEL

Although the Government does not anticipate a routine need for travel, Contractors may be required to perform travel CONUS or OCONUS to provide services as requested by the COR and approved in advance. The Contractor shall be responsible for obtaining all passenger transportation, lodging, and subsistence. Reimbursement of travel costs will be IAW FAR 31.205-46, Travel Costs. Costs for transportation, lodging, meals and incidental expenses incurred by the Contractor are allowable subject to FAR 31.205-46 and Federal Travel Regulation (FTR). The Contractor shall provide a request for travel with cost estimate to the TO COR for approval prior to commencement of travel. Requests for travel shall include the following information:

1. Name of traveler
2. Dates of travel
3. Destination(s)
4. Purpose of travel
5. Estimated transportation costs
6. Estimated lodging expense
7. Estimated meals and incidental expenses
8. Other expenses

Reimbursable travel shall not be conducted prior to the appropriate funding being added to the TO, if applicable.

(End of clause)

H - Special Contract Requirements

Special Contract Requirements SPECIAL CONTRACT REQUIREMENTS

H.1 PLACEMENT OF TASK ORDERS

(a) The contractor shall provide services under this IDIQ contract only as directed in Task Orders issued by authorized individuals. In accordance with FAR 16.505, each order will include:

- (1) Date of order;
- (2) Contract number and order number;
- (3) Item number and description, quantity, and unit price or estimated cost or fee;
- (4) Delivery or performance date;
- (5) Place of delivery or performance (including consignee);
- (6) Packaging, packing, and shipping instructions, if any;
- (7) Accounting and appropriation data;
- (8) Method of invoicing, payment and payment office, if not specified in the contract;
- (9) Any other pertinent information.

(b) In accordance with FAR 52.216-18, Ordering, the following individuals (or activities) are authorized to place orders against this contract:

All warranted COs are considered designated ordering officials for this IDIQ.

H.1.1 Ordering Process

(a) *General*. Contracting Officers shall use the procedures in this subsection when ordering services established by the IDIQ contracts.

(b) *Performance Work Statements(PWS)*. All PWS shall include a description of work to be performed; location of work; period of performance; deliverable schedule; applicable performance standards; and any special requirements (e.g., security clearances, travel, special knowledge). To the maximum extent practicable, DFC requirements shall be performance- based statements.

(c) *Ordering Procedures*. The ordering activity must provide the Request for Task Order Quote (RTOQ) , which includes the statement of work and evaluation criteria (e.g., experience and past performance), to IDIQ contractors.

i. Issue Request for Task Order Quote (RTOQ): RTOQs will include, at a minimum, the following:

- (a) Date Issued
- (b) Response Due Date and Time
- (c) Task Order PWS
- (d) Period of Performance
- (e) Clauses Incorporated at the RTOQ Level: as applicable clauses (not an all-inclusive list):

1. FAR 52.217-8, Option to Extend Services
2. FAR 52.217-9, Option to Extend the Term of the Contract
3. FAR 52.232-18 Availability of Funds

ii. In the event issues pertaining to a proposed task order be resolved to the satisfaction of the CO, the CO reserves the right to cancel the RTOQ. In such event, the Contractor(s) shall

be notified in writing of the OCO's decision. This decision is final and conclusive and shall not be subject to the "Disputes" clause or the "Contract Disputes Act."

H.2 OBSERVANCE OF HOLIDAYS

The Government hereby provides notification that Government personnel observe the listed days as holidays:

- (1) New Year's Day
- (2) Martin Luther King's Birthday
- (3) President's Day
- (4) Memorial Day
- (5) Juneteenth
- (6) Independence Day
- (8) Labor Day
- (7) Columbus Day
- (9) Veterans' Day
- (10) Thanksgiving Day
- (11) Christmas Day

In addition to the days designated as holidays, the Government observes the following days:

- (1) Any other day designated by Federal Statute
- (2) Any other day designated by Executive Order
- (3) Any other day designated by the President's Proclamation

H.3 POST AWARD CONFERENCE

The Contractor shall participate in a post award conference to be held within 30 business days after IDIQ award at no additional cost to the Government. The purpose of the post award conference is to aid both the Contractor and the Government in achieving a clear and mutual understanding of all IDIQ level procedural and base-contractual requirements and identify and resolve potential and/or identified areas of uncertainty (See FAR Subpart 42.5, *Post-award Orientation*). The conference may be conducted virtually to facilitate Contractor attendance. The Contractor shall attend post award conferences on task orders as required at no additional cost to the Government.

H.4 KEY PERSONNEL

The Contractor shall assign key personnel responsible for comprehensive support for the contract and task orders. The key personnel shall act as the point of contact with the Government for all communication, including contract or task order issues, deliverables, and evaluations, and represents the Contractor at all post-award meetings.

H.5 INTERPRETATION OF AGREEMENT: NOTIFICATION OF AMBIGUITIES

This written agreement and any and all identified writings or documents incorporated by reference herein or physically attached hereto constitute the parties' complete agreement, and no other prior or contemporaneous agreements either written or oral shall be considered to change, modify or contradict it. It shall be the obligation of the Contractor to exercise due diligence to discover and to bring to the attention of DFC at the earliest possible time any ambiguities, discrepancies, inconsistencies, or conflicts in or between the statement of work, Specifications and any other document incorporated into the agreement. Failure to comply with

such obligations shall be deemed a waiver and release of any and all claims for extra costs or delays arising out of such ambiguities, discrepancies, inconsistencies and conflicts.

H.6 RESTRICTIONS AGAINST DISCLOSURE

The Contractor agrees, in the performance of this agreement, to keep in strict confidence the information furnished by DFC and designated by the COR as non-public materials and information unless otherwise specified. The Contractor also agrees not to publish or otherwise divulge such information in whole or in part, in any manner or form, nor to authorize or permit others to do so, taking such reasonable measures as are necessary to restrict access to such information while in the Contractor's possession, to those employees needing such information to perform the work provided herein, i.e., on a need to know basis. The Contractor agrees to immediately notify the CO in writing in the event that the Contractor determines or has reason to suspect a breach of this requirement.

The Contractor agrees that it will not disclose any information described in this section to any persons or individual unless prior written approval is obtained from the CO. The Contractor agrees to insert the substance of this clause in any consultant agreement or subcontract hereunder.

H.7 CONFLICT OF INTEREST

Prior to commencing work on any task order, the Contractor shall conduct an organizational conflict-of-interest review and disclose to the Contracting Officer any actual, apparent, or potential conflict of interest. The Contractor shall not perform work under a task order issued under this IDIQ for any project for which the Contractor, an affiliate, or a proposed subcontractor is simultaneously performing work for the client, project sponsor, or other non-Government party on the same project, unless expressly authorized in writing by the Contracting Officer after review and resolution of the conflict. The Contractor shall promptly disclose any new or changed conflict-of-interest circumstances arising during contract performance and shall comply with any mitigation, avoidance, or neutralization measures required by the Contracting Officer."

H.8 DUPLICATION OF EFFORT

The Contractor hereby certifies that costs for work to be performed under this IDIQ are not duplicative of any cost charged against any other Government contract, subcontract, or other Government source. The Contractor agrees to advise the CO, in writing, of any other Government contract or subcontract it has performed, or is performing, which involves work directly related to the purpose of this agreement. The Contractor also certifies and agrees that any and all work performed under this agreement shall be directly and exclusively for the use and benefit of the Government, and not incidental to any other work, pursuit, research, or purpose of the Contractor, whose responsibility it will be to account for it accordingly.

H.9 RIGHTS TO INFORMATION

DFC considers knowledge management a critical aspect of its ongoing ability to service its end-users. All notes, written reports and other documentation developed in the performance of this requirement will become the sole property of the government. Material can be turned over electronically, except for transaction documents with original signatures, in which case the government requires turnover of original documents. The Contractor bears all costs of shipping and returning documents.

End of Clause

I - Contract Clauses

52.202-1 DEFINITIONS. (JUN 2020)

52.203-3 GRATUITIES. (APR 1984)

52.203-5 COVENANT AGAINST CONTINGENT FEES. (MAY 2014)

52.203-7 ANTI-KICKBACK PROCEDURES. (JUN 2020)

52.203-10 PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY. (MAY 2014)

52.203-12 LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS. (JUN 2020)

52.203-16 PREVENTING PERSONAL CONFLICTS OF INTEREST. (JUN 2020)

52.203-17 CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS. (NOV 2023)

52.204-2 SECURITY REQUIREMENTS. (MAR 2021)

52.204-9 PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL. (JAN 2011)

52.204-12 UNIQUE ENTITY IDENTIFIER MAINTENANCE. (OCT 2016)

52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE. (OCT 2018)

52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS. (DEC 2014)

52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS. (NOV 2021)

52.209-10 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS. (NOV 2015)

52.210-1 MARKET RESEARCH. (NOV 2021)

52.215-2 AUDIT AND RECORDS - NEGOTIATION. (JUN 2020)

52.215-8 ORDER OF PRECEDENCE - UNIFORM CONTRACT FORMAT. (OCT 1997)

52.215-14 INTEGRITY OF UNIT PRICES. (NOV 2021)

52.215-19 NOTIFICATION OF OWNERSHIP CHANGES. (OCT 1997)

52.215-23 LIMITATIONS ON PASS-THROUGH CHARGES. (JUN 2020)

52.216-7 ALLOWABLE COST AND PAYMENT. (AUG 2018)

52.216-18 ORDERING. (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from June 2026 through June 2031.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 ORDER LIMITATIONS. (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$2,500,, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

(1) Any order for a single item in excess of 5,000,000.00;

(2) Any order for a combination of items in excess of 10,000,000.00; or

(3) A series of orders from the same ordering office within 10 days that together call for quantities exceeding the limitation in subparagraph (b)(1) or (2) above.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.

(d) Notwithstanding paragraphs (b) and (c) above, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 60 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon

receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 INDEFINITE QUANTITY. (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the *maximum*. The Government shall order at least the quantity of supplies or services designated in the Schedule as the *minimum*.

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after 5 years from award..

(End of clause)

52.216-24 LIMITATION OF GOVERNMENT LIABILITY. (APR 1984)

(a) In performing this contract, the Contractor is not authorized to make expenditures or incur obligations exceeding 0dollars.

(b) The maximum amount for which the Government shall be liable if this contract is terminated is 0dollars.

(End of clause)

52.216-31 TIME-AND-MATERIALS/LABOR-HOUR PROPOSAL REQUIREMENTS-COMMERCIAL ACQUISITION. (NOV 2021)

52.217-8 OPTION TO EXTEND SERVICES. (NOV 1999)

52.219-13 NOTICE OF SET-ASIDE OF ORDERS. (MAR 2020)

(a) The Contracting Officer may set aside orders for the small business concerns identified in 19.000(a)(3).

(b) The Contracting Officer will give notice of the order or orders, if any, to be set aside for small business concerns identified in 19.000(a)(3) and the applicable small business

program. This notice, and its restrictions, will apply only to the specific orders that have been set aside for any of the small business concerns identified in 19.000(a)(3).

(End of clause)

52.219-32 ORDERS ISSUED DIRECTLY UNDER SMALL BUSINESS RESERVES. (MAR 2020)

52.222-21 PROHIBITION OF SEGREGATED FACILITIES. (APR 2015)

52.225-13 RESTRICTIONS ON CERTAIN FOREIGN PURCHASES. (FEB 2021)

52.227-2 NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT. (JUN 2020)

52.230-3 DISCLOSURE AND CONSISTENCY OF COST ACCOUNTING PRACTICES. (JUN 2020)

52.230-6 ADMINISTRATION OF COST ACCOUNTING STANDARDS. (JUN 2010)

52.232-17 INTEREST. (MAY 2014)

52.232-18 AVAILABILITY OF FUNDS. (APR 1984)

52.232-20 LIMITATION OF COST. (APR 1984)

52.232-22 LIMITATION OF FUNDS. (APR 1984)

52.232-23 ASSIGNMENT OF CLAIMS. (MAY 2014)

52.232-25 PROMPT PAYMENT. (JAN 2017)

52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS. (JUN 2013)

52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS. (MAR 2023)

52.233-1 DISPUTES. (MAY 2014)

52.233-3 PROTEST AFTER AWARD. (AUG 1996)

52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM. (OCT 2004)

52.237-3 CONTINUITY OF SERVICES. (JAN 1991)

52.239-1 PRIVACY OR SECURITY SAFEGUARDS. (AUG 1996)

52.242-3 PENALTIES FOR UNALLOWABLE COSTS. (DEC 2022)

52.242-13 BANKRUPTCY. (JUL 1995)

52.243-1 CHANGES - FIXED-PRICE. (AUG 1987)

52.243-3 CHANGES - TIME-AND-MATERIALS OR LABOR-HOURS. (SEP 2000)

52.244-2 SUBCONTRACTS. (JUN 2020)

52.244-5 COMPETITION IN SUBCONTRACTING. (AUG 2024)

52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (OCT 2025)

52.249-2 TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE). (APR 2012)

52.249-6 TERMINATION (COST-REIMBURSEMENT). (MAY 2004)

52.249-8 DEFAULT (FIXED-PRICE SUPPLY AND SERVICE). (APR 1984)

52.252-2 CLAUSES INCORPORATED BY REFERENCE. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): [Insert one or more Internet addresses]

(End of clause)

K - Representations, Certifications, and Other Statements of Bidders

52.204-5 WOMEN-OWNED BUSINESS (OTHER THAN SMALL BUSINESS). (OCT 2014)

52.204-6 UNIQUE ENTITY IDENTIFIER. (OCT 2016)

52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS. (OCT 2025)

(a)(1) The North American Industry Classification System (NAICS) code for this acquisition is 541620.

(2) The small business size standard is 19 Mil.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

___ (i) Paragraph (d) applies.

___ (ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in Part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$200,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the provision at 52.204-7.

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

☒ (i) 52.204-17, Ownership or Control of Offeror.

☒ (ii) 52.204-20, Predecessor of Offeror.

☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Certification.

☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

☐ (vi) 52.227-6, Royalty Information.

☐ (A) Basic.

☐ (B) Alternate I.

☐ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The Offeror has completed the annual representations and certifications electronically in SAM accessed through <https://www.sam.gov>. After reviewing the SAM information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in

paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

(End of provision)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT. (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or

renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

- (i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

- (ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) *Representations.* The Offeror represents that-

- (1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

- (2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.* (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

- (i) For covered equipment-

- (A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

- (B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

**52.222-38 COMPLIANCE WITH VETERANS' EMPLOYMENT REPORTING REQUIREMENTS.
(FEB 2016)**

**52.225-25 PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN CERTAIN
ACTIVITIES OR TRANSACTIONS RELATING TO IRAN-REPRESENTATION AND
CERTIFICATIONS. (JUN 2020)**

L - Instructions, Conditions, and Notices to Bidders

52.204-7 SYSTEM FOR AWARD MANAGEMENT. (NOV 2024)

52.212-1 INSTRUCTIONS TO OFFERORS - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (SEP 2023)

(a) *North American Industry Classification System (NAICS) code and small business size standard.* The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

- (1) Is set aside for small business and has a value above the simplified acquisition threshold;
- (2) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (3) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the SF 1449, letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show-

- (1) The solicitation number;
- (2) The time specified in the solicitation for receipt of offers;
- (3) The name, address, and telephone number of the offeror;
- (4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;
- (5) Terms of any express warranty;
- (6) Price and any discount terms;
- (7) "Remit to" address, if different than mailing address;
- (8) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) 52.212-3 (see FAR 52.212-3(b) for those representations and certifications that the offeror shall complete electronically);
- (9) Acknowledgment of Solicitation Amendments;
- (10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other

references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(11) If the offer is not submitted on the SF 1449, include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) *Period for acceptance of offers.* The offeror agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) *Product samples.* When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) *Multiple offers.* Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR subpart 4.10), or alternative commercial products or commercial services for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) *Late submissions, modifications, revisions, and withdrawals of offers.* (1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2)(i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) *Multiple awards*. The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) *Availability of requirements documents cited in the solicitation*. (1)(i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29, and copies of Federal specifications, standards, and product descriptions can be downloaded from the ASSIST website at <https://assist.dla.mil>.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the address in paragraph (i)(1)(i) of this provision.

(2) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at <https://assist.dla.mil>.

(3) Defense documents not available from the ASSIST website may be requested from the Defense Standardization Program Office by-

(i) Using the ASSIST feedback module (<https://assist.dla.mil/feedback>); or

(ii) Contacting the Defense Standardization Program Office by telephone at 571-767-6688 or email at assisthelp@dlamail.mil.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) *Unique entity identifier.* (Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR subpart 32.11) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) [Reserved]

(l) *Debriefing.* If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of provision)

52.215-1 INSTRUCTIONS TO OFFERORS - COMPETITIVE ACQUISITION. (NOV 2021)

(a) *Definitions.* As used in this provision-

Discussions are negotiations that occur after establishment of the competitive range that may, at the Contracting Officer's discretion, result in the offeror being allowed to revise its proposal.

In writing, writing, or written means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

Proposal modification is a change made to a proposal before the solicitation's closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

Proposal revision is a change to a proposal made after the solicitation closing date, at the request of or as allowed by a Contracting Officer as the result of negotiations.

Time, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) *Amendments to solicitations.* If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

(c) *Submission, modification, revision, and withdrawal of proposals.* (1) Unless other methods (e.g., electronic commerce or facsimile) are permitted in the solicitation, proposals and modifications to proposals shall be submitted in paper media in sealed envelopes or packages (i) addressed to the office specified in the solicitation, and (ii) showing the time and date specified for receipt, the solicitation number, and the name and address of the offeror. Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c)(1)(i) and (c)(1)(ii) of this provision.

(2) The first page of the proposal must show-

(i) The solicitation number;

(ii) The name, address, and telephone and facsimile numbers of the offeror (and electronic address if available);

(iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

(iv) Names, titles, and telephone and facsimile numbers (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this solicitation; and

(v) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3) *Submission, modification, revision, and withdrawal of proposals.* (i) Offerors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.

(ii)(A) Any proposal, modification, or revision, received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and -

(1) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or

(2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(3) It is the only proposal received.

(B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation, the time specified for receipt of proposals will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(v) Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provision at 52.215-5, Facsimile Proposals. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.

(4) Unless otherwise specified in the solicitation, the offeror may propose to provide any item or combination of items.

(5) Offerors shall submit proposals in response to this solicitation in English, unless otherwise permitted by the solicitation, and in U.S. dollars, unless the provision at FAR 52.225-17, Evaluation of Foreign Currency Offers, is included in the solicitation.

(6) Offerors may submit modifications to their proposals at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(8) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d) *Offer expiration date.* Proposals in response to this solicitation will be valid for the number of days specified on the solicitation cover sheet (unless a different period is proposed by the offeror).

(e) *Restriction on disclosure and use of data.* Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall -

(1) Mark the title page with the following legend: This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed - in whole or in part - for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of - or in connection with - the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets (*insert numbers or other identification of sheets*); and

(2) Mark each sheet of data it wishes to restrict with the following legend: Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) *Contract award.* (1) The Government intends to award a contract or contracts resulting from this solicitation to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

(2) The Government may reject any or all proposals if such action is in the Government's interest.

(3) The Government may waive informalities and minor irregularities in proposals received.

(4) The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

(5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.

(6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.

(7) Exchanges with offerors after receipt of a proposal do not constitute a rejection or counteroffer by the Government.

(8) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(9) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.

(10) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.

(11) If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(i) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(iii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(iv) A summary of the rationale for award.

(v) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(vi) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of provision)

52.216-1 TYPE OF CONTRACT. (APR 1984)

The Government contemplates award of a Firm Fixed Price and/or T&M/ Labor Hour contract resulting from this solicitation.

(End of provision)

52.216-27 SINGLE OR MULTIPLE AWARDS. (OCT 1995)

52.219-31 NOTICE OF SMALL BUSINESS RESERVE. (MAR 2020)

52.233-2 SERVICE OF PROTEST. (SEP 2006)

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of provision)

EVALUATION FACTORS

DFC.023 ADDENDUM TO FAR 52.212-1 & 52.212-2

Addendum to FAR 52.212-1 Instructions to Offerors – Commercial Products and Commercial Services.

This addendum serves to add, modify, or clarify instructions in FAR 52.212-1 as well as provide information related to evaluation factors.

NOTICE OF INDUSTRY DAY: DFC will host an industry day for interested parties on April 30, 2026 at 2:00pm Eastern time via Microsoft Team. To participate, please submit a list of each attendee's first name, last name and email address to melissa.hergenrader@dfc.gov and aaron.mckellum@dfc.gov by April 29, 4:00pm Eastern time.

A. SUBMITTAL: Offerors shall submit a quotes via email to melissa.hergenrader@dfc.gov and aaron.mckellum@dfc.gov no later than the offer due date/local time listed in Block 8 on page one of the SF1449. Local Time is Eastern Standard Time. Only electronic (e-mail) offers will be

accepted. Offers submitted by any other method will not be accepted. Proposals received after the offer due date/local time will be late and will not be considered for award. Files larger than 20MB may need to be transmitted in separate emails. All emails, regardless of size, need to be received by the Government server, by the stated submission deadline. It is the responsibility of the offeror to ensure receipt of all documents by the deadline given. The Government will not be responsible for any failure of transmission or receipt of the proposal, or any failure of the Offeror to verify receipt of the emailed proposal.

B. If an offeror believes that the requirements in these instructions contain an error, omission, or are otherwise unsound, the offeror shall immediately notify the Contracting Officer (CO) in writing with supporting rationale. The offeror is reminded that the Government reserves the right to award this contract(s) based on the initial proposal, as received, without discussions.

C. QUESTIONS: Questions shall be submitted via e-mail to melissa.hergenrader@dfc.gov and aaron.mckellum@dfc.gov not later than 2:00pm EST three (3) business days after the industry day. Offerors shall submit all questions on one email. Telephonic inquiries will not be entertained. Offerors are responsible for confirming receipt of questions. Answers to vendor questions will be posted to beta.SAM.gov.

D. CONTRACT DOCUMENTS: The Offeror shall submit the following:

1. Offeror Name
2. Physical address
3. DUNS number
4. CAGE code if applicable
5. List of any Small Business Program designations
6. Point of contact with phone number and email address
7. Statement that the Offeror agrees to hold the offer firm for 180 calendar days after the proposal closing date.
8. Statement that the Offeror is has an active registration in the System for Award Management (SAM) with the appropriate NAICS Code, does not have any Active Exclusions, and that entity representations and certificates are current, complete, and accurate as of the date proposals are due.
9. Page 1 of the SF1449: Offeror shall fill in blocks 12, 17a, 30b and 30c. Block 30a must be signed: Electronic signature is acceptable. Do not include the entire SF 1449.
10. Signed copies of Page 1, SF1449 of any amendments to the solicitation.
11. Small Business Subcontracting Outline with appropriate fill-ins. Offerors may provide its' firm's subcontracting plan in lieu of the outline provided by DFC, if it meets all the requirements of a small business subcontracting plan.
12. Any exceptions to the terms of this solicitation shall be clearly outlined and may preclude the offeror from an award.

E. PRICE: Offerors shall submit fully burdened rates using the excel spreadsheet provided. The government has populated the number of hours for each year and labor category. These are used solely for the purposes of price evaluation and are not estimates or actuals. The fully burdened rates will be incorporated into the contract as ceiling rates for each year.

F. Offerors are encouraged to submit narratives detailing past performance and (if feasible) sample documents such as "reports" to convey capabilities. Narratives are not limited to report type documents but should consider (if feasible) providing written work that conveys technical strength and capabilities to the task(s) required. Past Performance shall be relevant and recent (within the last 5 years).

G. TECHNICAL: The Offeror shall submit the following:

1. Technical Approach and Understanding

- Understanding of DFC Environmental and Social Policy and Procedures (ESPP) and IFC Performance Standards
- Methodology for screening, due diligence, monitoring, and gap analysis
- Task order management and surge capacity to support multiple projects

2. Relevant Corporate Experience

- Experience supporting DFIs and/or MDBs
- Sector experience relevant to DFC portfolio (energy, critical minerals, infrastructure, FI, agriculture, telecoms, maritime, pharmaceutical)
- Broad geographical experience across the countries DFC operates in

3. Key Personnel and Subject Matter Expertise

- Senior E&S specialists with DFI due diligence and monitoring experience
- Availability of thematic subject matter experts (biodiversity, resettlement, labor, Indigenous Peoples)
- Staffing depth and flexibility for multiple task orders

4. Quality Assurance and Management

Evaluation should assess internal quality control systems, peer review procedures, and ability to ensure consistent high-quality technical outputs.

5. Task Scenario for Proposal Evaluation

The purpose of the Example Task is to assess the applicant's practical ability to analyze environmental and social risks and apply the IFC Performance Standards in a DFI investment context.

Example Task Scenario

DFC is considering providing financing for a lithium mining project with an associated 15Km transmission line in a developing country. The project site is located near a known migratory bird flyway and within a landscape that may contain critical habitat for several protected species. A few local groups have raised concerns about potential social impacting, including impacts on Indigenous Peoples, due to the project location. It is expected that the current transmission line route may intersect areas containing archaeological artifacts.

The project sponsor has submitted the following documentation:

- Environmental and Social Impact Assessment (ESIA)
- Biodiversity baseline study
- Environmental and Social Management System (ESMS)
- Stakeholder Engagement Plan
- Preliminary Environmental and Social Management Plan (ESMP)

Offerors shall provide a brief technical memorandum (5–8 pages recommended) that addresses the following:

1. Assess the project against DFC's ESPP Categorical Prohibitions.
2. Identify key environmental and social risks associated with the project.
3. Identify potential gaps between the documentation provided and IFC Performance Standards requirements.
4. Describe the due diligence steps you undertake to evaluate compliance with Applicable Standards (IFC Performance Standards, DFC's ESPP, and relevant World Bank EHS Guidelines).
5. Identify potential corrective actions or Environmental and Social Action Plan (ESAP) items that may be required prior to financial close.
6. Describe what additional studies or monitoring measures may be necessary.

Addendum to FAR 52.212-2 Evaluation-Commercial Products and Commercial Services.

This addendum serves to add, modify, or clarify instructions in FAR 52.212-2 as well as provide

information related to evaluation.

A. AWARD DECISION: The Government will award a single Indefinite Delivery Indefinite Quantity (IDIQ) contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government. The following factors shall be used to evaluate offers: Price, Past Performance, and Technical. Awards will be made to the Offerors whose proposals are evaluated, by an integrated assessment of price/cost and non-price evaluation factors, to provide the best value to the Government.

B. COMMUNICATIONS: The Government reserves the right to make an award without discussions based solely upon initial proposals based solely upon initial proposals. Clarifications and communication exchanges may be conducted after receipt of proposals. These do not constitute discussions and the contracting officer reserves the right to award a contract without the opportunity for proposal revision. Therefore, offerors shall ensure that their initial proposal constitutes their best offer in terms of the technical solution being proposed.

C. EVALUATION: The Government will utilize the information requested in the "Instructions to Offerors" and the below evaluation criteria.

D. CONTRACT DOCUMENTS: To be considered responsive, all contractual items shall be submitted in accordance with the "Instructions to Offerors" and be complete, accurate, and acceptable by the Contracting Officer.

E. PRICE: Price analysis will be used to evaluate the proposed ceiling hourly rates and price narratives for reasonableness to ensure a fair and reasonable price. Price will not receive an adjectival rating. Annual escalation rates will be evaluated to determine balanced pricing for all potential periods of performance in task order awards. For the purposes of evaluation, the Government provided the estimated quantity of hours per year for each labor category to estimate an annual price per category and total per year.

F. PAST PERFORMANCE: The Government will evaluate Past Performance for scope, relevance, and recency (last 5 years). Past performance evaluation examines an Offeror's relevant present and past performance record to determine the performance risk associated with each proposal and the degree of confidence for successful performance based on the Offeror's demonstrated record of performance on similar contracts or commercial engagements. Past performance surveys may be conducted to verify past performance with Contracting Officers. Offerors are cautioned that in conducting the evaluation, the Government reserves the right to obtain information using information sources not provided by the Offeror. Examples of this may include the Federal Awardee Performance and Integrity Information System (FAPIS), the Contractor Performance Assessment Rating System (CPARS), or other databases for evaluation and reserves the right to contact independent sources not provided by the offeror. Offerors with no recent or relevant past performance will result in assignment of a neutral rating, indicating neither a favorable nor unfavorable evaluation rating. The Government reserves the right to favor positive past performance ratings. The overall Confidence Ratings for the Past Performance Factor are listed below:

Substantial Confidence – Based on the Offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence – Based on the Offeror's recent/relevant performance record, the

Government has a reasonable expectation that the offeror will successfully perform the required effort.

Neutral Confidence – No recent/relevant performance record is available, or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. In this case, an offeror may not be evaluated favorably or unfavorably with regard to the past performance factor.

Limited Confidence – Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.

No Confidence - Based on the Offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

G. TECHNICAL: The technical capability factor is comprised of the following subfactors and will result in the overall technical rating of the proposal.

- Technical Approach and Understanding
- Relevant Corporate Experience
- Key Personnel and Subject Matter Expertise
- Quality Assurance and Management
- Example Task Scenario

TECHNICAL RATING: The following adjectival ratings will be used to evaluate technical capability:

Outstanding – Proposal indicates an exceptional approach and understanding of the requirements and contains multiple strengths, and risk of unsuccessful performance is low.

Good – Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength, and risk of unsuccessful performance is low to moderate.

Acceptable – Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.

Marginal – Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.

Unacceptable – Proposal does not meet requirement of the solicitation, and thus, contains one or more deficiencies, and/or risk of unsuccessful performance is unacceptable. Proposal is not awardable.

[End of Addendum]

M - Evaluation Factors for Award

52.212-2 EVALUATION - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

[]

(Contracting Officer shall insert the significant evaluation factors, such as (i) technical capability of the item offered to meet the Government requirement; (ii) price; (iii) past performance (see FAR 15.304); and include them in the relative order of importance of the evaluation factors, such as in descending order of importance.)

Technical and past performance, when combined, are [] (Contracting Officer state, in accordance with FAR 15.304, the relative importance of all other evaluation factors, when combined, when compared to price.)

(b) *Options*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)